

23STCV26364 23STCV26364

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-08-21

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C732%2C08%2F21%2F2026

Source SHA-256: c6f0c40fa4c88bce9943bcd729bcc794ea46a1341134f8794765988a8e067edf

Case Number: 23STCV26364 Hearing Date: August 21, 2026 Dept: 732

Brandi Brooks v. PM Capital Management, et al.

Friday, August 21, 2026

CASE NUMBER: 23STCV26364

OPPOSED

Plaintiff

Brandi Brooks' Motion to Vacate Dismissal

Facts: This is an action for employment retaliation and failure to pay wages. The First Amended Complaint ("FAC") alleges as follows. Plaintiff Brandi Brooks ("Plaintiff"), while an employee for Defendants PM Capital Management, LLC and Le Grand Restaurant ("Defendants"), had her hours reduced and her employment terminated after she complained of Defendants' repeated practice of calling her into work and then dismissing her because they had no work for her, which she believed to be illegal. (FAC ¶¶ 19–24.)

Procedural History: Plaintiff filed the Complaint on October 27, 2023, and filed the FAC on January 2, 2024, alleging nine causes of action:

1.

Retaliation (Lab. Code § 98.6)

2.

Retaliation (Lab. Code § 1102.5)

3.

Wrongful Termination

4.

Failure to Pay Wages

5.

Minimum Wage Violation

6.

Inaccurate Wage Statements

7.

Waiting Time Penalties

8.

Unfair Competition

9.

PAGA

Plaintiff

filed a motion to enforce settlement on February 10, 2026, formerly on calendar for October 19, 2026.

On

July 15, 2026, this court granted Defendant's unopposed motion to enforce settlement, and dismissed the action, retaining jurisdiction to enforce the settlement under Code of Civil Procedure § 664.6, and taking Plaintiff's pending motion to enforce settlement off calendar.

Plaintiff

filed the present motion to vacate dismissal on July 24, 2026.

Defendant

filed an opposition on August 10, 2026.

Plaintiff

filed a reply on August 14, 2026.

Analysis:

I.

MOTION TO VACATE DISMISSAL

“The

court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473, subd. (b).) Such an application must include “a copy of the answer or other pleading proposed to be filed therein,” and must be made within a “reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc., § 473, subd. (b).) “The test of whether neglect was excusable is whether “ ‘a reasonably prudent person under the same or similar circumstances’ might have made the same error.” (Luri v. Greenwald (2003) 107 Cal.App.4th 1119, 1128.)

Plaintiff

Brandi Brooks (“Plaintiff”) seeks relief from the dismissal entered pursuant to the motion of Defendant PM Capital Management, LLC (“Defendant”) on July 15, 2026, based on the contention that said order was entered following defective service upon Plaintiff’s counsel, depriving Plaintiff of an opportunity to respond. (Motion at p. 6.)

Defendant

in opposition argues that the defect in service — an incorrect email address listed on the proof of service for Defendant’s prior motion — did not prevent Plaintiff from receiving notice of the motion, as the motion was in fact served upon more than one attorney for Plaintiff, giving them notice even if the email address for one attorney was incorrect. (Levine Decl. ¶ 3.)

Plaintiff in reply concedes the propriety of dismissal under the terms of the settlement, as ordered by the court on July 15, 2026, and does not address Defendant’s contention that service of the motion was electronically made upon counsel for Plaintiff, despite the

defective email address listed in the proof of service (Reply at p. 3.) Plaintiff now seeks only that her motion to enforce settlement, filed on February 10, 2026, and formerly set for hearing on October 19, 2026, before it was taken off-calendar with the entry of dismissal, be placed back on calendar.(Reply at p. 3.)

The motion to vacate dismissal is DENIED, as all parties agree dismissal was proper. Plaintiff's motion to enforce settlement, filed on February 10, 2026, shall be placed back on calendar, as dismissal was entered pursuant to this court's retention of jurisdiction to enforce the settlement under Code of Civil Procedure § 664.6.

Superior Court of California

County of Los Angeles

Department 732

BRANDI BROOKS.;

Plaintiff,

vs.

PM CAPITAL
MANAGEMENT, et al.;

Defendants.

Case No.:
23STCV26364

Hearing Date: August 21, 2026

[TENTATIVE] RULING RE:

Plaintiff Brandi Brooks' Motion to Vacate Dismissal

Plaintiff Brandi Brooks' Motion to

Vacate Dismissal is DENIED..

Plaintiff's motion to enforce settlement, filed on February 10, 2026, shall be placed back on calendar.

Defendant

to provide notice.

Dated: August 21, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court